

CHAPTER 14

An Act to enable the Minister of Transport to grant exemptions from requirements as to crew accommodation imposed under the Merchant Shipping Act, 1948, and the Merchant Shipping Act, 1950.

[13th March, 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) Section one of the Merchant Shipping Act, 1948 (which section enables the Minister of Transport to make regulations with respect to crew accommodation in ships other than fishing boats), shall have effect as if, after subsection (2) thereof, there were inserted the following subsection:—

“ (2A) The Minister may exempt any ships or classes of ships from any requirements of regulations made under this section, either absolutely or subject to such conditions as he thinks fit.”

(2) Section one of the Merchant Shipping Act, 1950 (which section enables the Minister of Transport to make regulations with respect to crew accommodation in fishing boats), shall have effect as if, after subsection (2) thereof, there were inserted the following subsection:—

“ (2A) The Minister may exempt any fishing boats or classes of fishing boats from any requirements of regulations made under this section, either absolutely or subject to such conditions as he thinks fit.”

2. This Act may be cited as the Merchant Shipping Act, 1952, and this Act and the Merchant Shipping Acts, 1894 to 1950, may be cited together as the Merchant Shipping Acts, 1894 to 1952.

CHAPTER 15

Agriculture (Fertilisers) Act, 1952

ARRANGEMENT OF SECTIONS

Section

1. Power to make contributions in respect of fertilisers in accordance with schemes.
2. Maximum amounts of contributions.
3. Period in respect of which contributions may be made.
4. Supplementary provisions as to schemes.
5. Expenses of administration.
6. Short title and interpretation.

An Act to authorise the payment out of moneys provided by Parliament of contributions for relief of occupiers of agricultural land in respect of expenditure on fertilisers. [13th March 1952.]

BE it enacted by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Power to make contributions in respect of fertilisers in accordance with schemes.

1.—(1) Contributions out of moneys provided by Parliament may be made, in accordance with a scheme or schemes made by the appropriate Minister with the approval of the Treasury, for relieving occupiers of agricultural land of a part of the expenditure which they would otherwise incur in respect of fertilisers acquired by them for use for adding to such land to improve the fertility of the soil.

(2) A scheme under this Act may be a separate scheme for England and Wales, or for Scotland, or for Northern Ireland, or may be a joint scheme for any two of those countries or for all three countries.

(3) The contributions to be provided for by a scheme under this Act shall be contributions in respect of fertilisers acquired by occupiers of agricultural land, or by associations of farmers, allotment holders or smallholders, or other similar associations which acquire fertilisers in bulk for redistribution to their members:

Provided that, if the appropriate Minister is satisfied that there are circumstances which render it substantially more expedient that the relief should be given, in the country or countries in which a scheme under this Act is to operate, by means of contributions in respect of fertilisers manufactured, imported or distributed by persons who manufacture, import or distribute them, he may make provision thereby for such contributions.

Maximum amounts of contributions.

2. The provision to be made by a scheme under this Act as respects the amounts of the contributions which may be made in accordance with the scheme shall be such as in the opinion of the appropriate Minister will secure so far as is practicable that the making of contributions in accordance with the scheme in respect of fertilisers of any kind will not relieve occupiers who acquire fertilisers of that kind of more than one-half of the expenditure which they would have incurred in respect thereof if there had been no provision for the making of those contributions.

Period in respect of which contributions may be made.

3.—(1) Contributions under this Act which are in respect of fertilisers acquired shall be made only where they have been delivered to the occupier or association within such period as is specified in the scheme in accordance with which they are made.

(2) A scheme under this Act which provides for contributions in respect of fertilisers manufactured, imported or distributed shall make such provision as in the opinion of the appropriate Minister will secure so far as is practicable that such contributions shall be made only in respect of fertilisers delivered to such an occupier or association as is mentioned in section one of this Act within such period as is specified in the scheme in accordance with which they are made.

(3) A period specified for the purposes of this section in the first scheme under this Act for any country may be a period beginning before the passing of this Act, but not before the first day of July, nineteen hundred and fifty-one, and shall not exceed one year.

(4) A period specified for the purposes of this section in any subsequent scheme under this Act shall not exceed two years.

4.—(1) A scheme under this Act may restrict the amounts of contributions in any manner and make the payment of contributions subject to any conditions, and may, in particular,—
Supplementary provisions
as to schemes.

- (a) specify the kinds of fertilisers in respect of which contributions may be made;
- (b) prohibit contributions below a minimum ascertained in a specified manner;
- (c) provide for securing that no contribution shall be made unless application therefor is made within the time and in the manner provided by the scheme;
- (d) provide for requiring applicants to give facilities for the inspection of fertilisers to which applications relate, to give information required to verify applications, and to produce documents required for that purpose;
- (e) prohibit or restrict the making of contributions in cases in which contributions in respect of fertilisers acquired are available out of moneys provided by Parliament under any other Act.

(2) A scheme under this Act may differentiate as respects the amounts of contributions or any other matter as between different kinds of fertilisers or by reference to any other difference of circumstances.

(3) The power to make a scheme under this Act shall be construed as including power to vary or revoke the scheme by a subsequent scheme:

Provided that any extension by a varying scheme of a period specified for the purposes of section three of this Act shall be for not more than two years.

(4) The power to make, vary or revoke a scheme under this Act shall be exercisable by statutory instrument.

(5) No statutory instrument making, varying or revoking a scheme under this Act shall be made unless a draft thereof has been laid before Parliament and has been approved by resolution of each House of Parliament.

Expenses of administration. 5. Any expenses of administration incurred by a Minister of the Crown for the purposes of a scheme under this Act shall be paid out of moneys provided by Parliament.

Short title and interpretation. 6.—(1) This Act may be cited as the Agriculture (Fertilisers) Act, 1952.

(2) In this Act,—

“ agricultural land ” means any land used as arable meadow or pasture ground, or for the purpose of poultry farming, market gardens, nursery grounds, orchards or allotments, including allotment gardens within the meaning of the Allotments Act, 1922, or the Allotments (Scotland) Act, 1922;

12 & 13 Geo. 5.
c. 51.
12 & 13 Geo. 5.
c. 52.

“ the appropriate Minister ” means—

(a) in relation to a separate scheme for England and Wales, or for Northern Ireland, the Minister of Agriculture and Fisheries;

(b) in relation to a separate scheme for Scotland, the Secretary of State;

(c) in relation to a joint scheme for England and Wales and Northern Ireland, the Minister of Agriculture and Fisheries, and, in relation to a joint scheme for either or both of those countries and Scotland, that Minister and the Secretary of State acting jointly.

CHAPTER 16

An Act to apply certain sums out of the Consolidated Fund to the service of the years ending on the thirty-first day of March, one thousand nine hundred and fifty-two and one thousand nine hundred and fifty-three.

[27th March 1952.]

Most Gracious Sovereign,

WE, Your Majesty's most dutiful and loyal subjects, the Commons of the United Kingdom in Parliament assembled, towards making good the supply which we have cheerfully granted to Your Majesty in this session of Parliament, have resolved to grant unto Your Majesty the sums hereinafter